

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
HECTOR BEATO,

Plaintiff(s),

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT and POLICE OFFICER DOREYDA
MUNOZ,

Defendant(s).
-----X

SUMMONS

Index No.:

Date of Purchase:

Plaintiff designates
Bronx County as the place of
trial

The basis of venue is the
Place of Occurrence the
incident occurred at
North East corner of Saint
Anns Avenue and East 141
Street, Bronx, New York

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

**Dated: Brooklyn, New York
July 6, 2017**

Yours, etc.,



Christopher S. Cardillo, Esq.
C CARDILLO, P.C
Attorney(s) for Plaintiff(s)
HECTOR BEATO
9728 3rd Avenue, Suite 308
Brooklyn, New York 11209
T. 646-398-5025
Email: cardilloesq@gmail.com

CITY OF NEW YORK
100 Church Street,
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT

1 Police Plaza Path
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
HECTOR BEATO,

Plaintiff(s),

Index No.:

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT and POLICE OFFICER DOREYDA
MUNOZ

Defendant(s).

-----X

Plaintiff, **HECTOR BEATO** ("Beato" and/or Plaintiff) by his attorneys **C.**

CARDILLO, P.C., as and for his Verified Complaint, respectfully alleges, upon
information and belief:

AS AND FOR A FIRST CAUSE OF ACTION
(False Arrest under the laws of the State of New York)

1. The plaintiff, BEATO, at all times herein mentioned was and still is a resident of the County of Bronx and the State of New York.
2. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, (hereinafter referred to as "NYC") was and still is a municipal corporation duly organized and existing under the virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, defendant NYC operated, maintained, managed and controlled the NEW YORK CITY POLICE DEPARTMENT (hereinafter referred to as "NYPD").
4. That at all times hereinafter mentioned, defendant NYPD was and still is an agency, instrumentality, department and/or governmental corporation under the direction and control of the defendant NYC.

5. Upon information and belief, the defendant Police Officer DOREYDA MUNOZ (“Munoz”), the NYPD Police Officer who aided in the commencement of criminal proceedings against plaintiff on or about July 29, 2015, was and still is a Police Officer of the NYPD, 40th Command/Precinct in the County of Bronx and State of New York.

6. The cause of action herein arose in the State of New York, County of Bronx.

7. That the plaintiff has complied with all of the conditions precedent to the bringing of this action, and has complied with all the provisions of the General Municipal Law and the Public Authorities Law in relation thereto and, in particular, has presented a claim hereinafter mentioned to the defendants, NYC and NYPD for adjustment, and more than thirty (30) days have elapsed since the presentation of said Notice of Claim on or about October 24, 2016 and on or about February 6, 2017 and said claim remains unadjusted, and said defendants have failed and refused to make any adjustment of the same, and a pre-suit 50 H hearing was conducted pursuant to the request of the Defendants on January 27, 2017¹, and this action is brought following that hearing and within one year and ninety days of the date that the claim arose.

8. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

9. That, upon information and belief, at all times herein mentioned, the NYPD was an agency, operated and maintained by NYC and more particularly within the boundaries of the County Bronx and State of New York or an independent agency of government authorized to operate within the City of New York and more particularly within the boundaries of the County and State of New York.

¹ The Defendants after receiving a second Notice of Claim for property damage arising out of the original claim informed us that they would not be conducting a second 50h hearing.

10. That, upon information and belief, at all times herein mentioned defendant Munoz is a duly sworn police officers of NYC and NYPD of 40th Command/Precinct and was acting under the supervision of said department according to her official duties.

11. That, and on or about July 29, 2015 the Plaintiff was unlawfully arrested and detained without probable caused by Munoz, NYPD and NYC and in the County of the Bronx and State of New York.

12. That, and on or about July 29, 2015 heretofore a criminal case was commenced against plaintiff under Docket No 2015 BX 035522 on charges of VTL 1192.01 (DWA).

13. That there was no probable cause to commence or to continue the aforesaid criminal proceeding against the plaintiff.

14. That the aforesaid criminal proceeding against the Plaintiff was instituted and continued with actual malice by the defendants herein.

15. That, as a result of the foregoing, the Plaintiff has been caused to suffer, inter alia, emotional distress, embarrassment and humiliation, loss of employment, lost earnings, lost opportunities for employment, damage to reputation, and deprivation of his constitutional rights.

16. That, as a result of the foregoing, the Plaintiff has been caused to incur substantial costs to repair the damage the Defendants caused to his car upon and during its impoundment.

17. That, as a result of the foregoing, the Plaintiff has been caused to incur substantial legal and other fees to defend himself from the unwarranted and unjustified criminal charges.

18. That, as a result of the foregoing, the Plaintiff has been caused to sustained damages in a sum, the exact amount to be determined at trial of which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
(Malicious Prosecution under the laws of the State of New York)

19. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "19" with the same force and effect as if fully set forth herein.

20. Defendants initiated, commenced and continued a malicious prosecution against Plaintiff.

21. Defendants caused Plaintiff to be prosecuted without any probable cause.

22. That, as a result of the foregoing, the Plaintiff has been caused to suffer, inter alia, emotional distress, embarrassment and humiliation, loss of employment, lost earnings, lost opportunities for employment, damage to reputation, and deprivation of his constitutional rights.

23. That, as a result of the foregoing, the Plaintiff has been caused to incur substantial costs to repair the damage the Defendants caused to his car upon and during its impoundment.

24. That, as a result of the foregoing, the Plaintiff has been caused to incur substantial legal and other fees to defend himself from the unwarranted and unjustified criminal charges.

25. That, as a result of the foregoing, the Plaintiff has been caused to sustained damages in a sum, the exact amount to be determined at trial of which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION
(Negligent Training and Supervision under the laws of the State of New York)

26. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "25" with the same force and effect as if fully set forth herein.

27. Defendants NYPD and NYC failed to use reasonable care in the training and supervision of the Defendant Munoz who participated in the arrest and the commencement and continuation of the aforesaid criminal proceeding against Plaintiff.

28. That, as a result of the foregoing, the Plaintiff has been caused to suffer, inter alia, emotional distress, embarrassment and humiliation, loss of employment, lost earnings, lost opportunities for employment, damage to reputation, and deprivation of his constitutional rights.

29. That, as a result of the foregoing, the Plaintiff has been caused to incur substantial costs to repair the damage the Defendants caused to his car upon and during its impoundment.

30. That, as a result of the foregoing, the Plaintiff has been caused to incur substantial legal and other fees to defend himself from the unwarranted and unjustified criminal charges.

31. That, as a result of the foregoing, the Plaintiff has been caused to sustained damages in a sum, the exact amount to be determined at trial of which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION
(Violation of Civil Rights Under the Constitutions of the
United States and the State of New York)

32. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "31" with the same force and effect as if fully set forth herein.

33. The above-described actions by the defendants deprived Plaintiff of his rights, privileges and immunities as granted under the United States Constitution, Amendments One, Four, Five and Fourteen, the New York State Constitution, and the Civil Rights Act, 42 U.S.C. § 1981, 1983, 1985, 1986 and 1988, and the complained of conduct was either the result of an official policy or unofficial custom, including but not limited to, the policies and customs concerning the hiring, training, supervision, retention and discipline of NYC and/or NYPD, their agents, servants and/or employees.

34. That NYC and NYPD established a custom, policy and/or practice of encouraging, approving and/or tolerating the use by the NYPD of arresting and commencing criminal proceedings against civilians, and continuing said criminal proceedings, without probable cause.

35. That NYC and NYPD were deliberately indifferent to the use of improper procedures in the detention and arrest of civilians, and in the commencement and continuance of criminal proceedings against civilians, and that defendants established a custom or policy and/or practice of encouraging, approving and/or tolerating the use of said improper procedures.

36. NYC and NYPD have failed to properly or effectively train its agents, servants and/or employees, with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

37. NYC and NYPD, have sanctioned the policy and practices heretofore described through their deliberate indifference to the effects of such policy and practices upon the constitutional rights of the Plaintiff and others similarly situated.

38. The defendants' motivations were in contravention of the United States Constitution and the Constitution of the State of New York.

39. That the unlawful conduct of the defendants, their agents, servants and/or employees and each of them, deprived Plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: (a) the right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and (b) the right of plaintiff to not be deprived of life, liberty or property without due process of law; and (c) the right of plaintiff to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

40. That, as a result of the foregoing, the Plaintiff has been caused to sustained damages in a sum, the exact amount to be determined at trial of which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

Bailment

41. A "Bailment does not necessarily and always, though generally, depend upon a contractual relation. It is the element of lawful possession, however created, and duty to account for the thing as the property of another that creates the bailment, regardless of whether such possession is based on contract in the ordinary sense or not." *Foulke v New York Consol. R.R. Co.*, 228 NY 269, 275.

42. "A bailment may arise from the bare fact of the thing coming into the actual possession and control of a person fortuitously, or by mistake as to the duty or ability of the recipient to effect the purpose contemplated by the absolute owner." *Martin v Briggs*, 235 AD2d at 197, quoting *Phelps v People*, 72 NY 334, 358.

43. In the case at hand Plaintiff's car was seized by the Defendants and put into storage for over a year. During that time the care, a magnificently restored classic car, was for all intents and purposes completely ruined.

44. That, as a result of the foregoing, the Plaintiff has been caused to incur substantial costs to repair the damage the Defendants caused to his car upon and during its impoundment.

45. That, as a result of the foregoing, the Plaintiff has been caused to sustained damages in a sum, the exact amount to be determined at trial of which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgment against the defendants for the all causes of action in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

**Dated: Brooklyn, New York
July 6, 2017**

Yours, etc.,

A handwritten signature in black ink, appearing to read 'C. Cardillo', written over a horizontal line.

Christopher S. Cardillo, Esq.
C. CARDILLO, P.C
Attorney(s) for Plaintiff(s)
HECTOR BEATO
9728 3rd Avenue, Suite 308
Brooklyn, NY 11209
T. 646-398-5025
Email: cardilloesq@gmail.com

VERIFICATION

STATE OF NEW YORK)

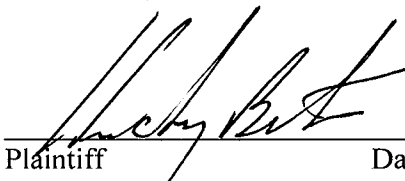
COUNTY OF Kings)

SS.:

Hector Beato

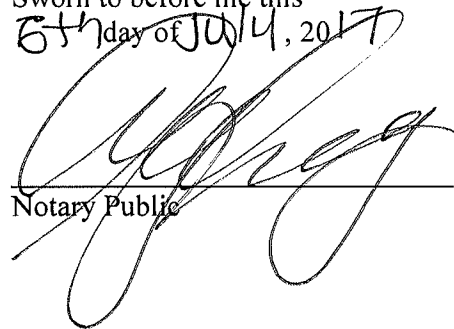
, being duly sworn, deposes and says:

That the deponent is the Plaintiff in the within action; that the deponent has read the foregoing Verified Complaint and knows the contents thereof; that the same is true to deponents own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes to be true.

 7/6/17
Plaintiff Date

Sworn to before me this

36th day of July, 2017


Notary Public